

92. Defendant's conduct constitutes a violation of California Civil Code section 1708.89, which prohibits the intentional distribution of personal identifying information with the intent to incite or threaten physical harm or harassment, or with knowledge that the information will be used to commit such acts.

(FAC ¶¶ 86-92.)

Defendant argues the doxing claim fails because sending the video to university administrators through a confidential reporting channel does not constitute doxing. As to the disclosure to the university, the Court agrees. That disclosure does not satisfy the statutory requirements of intent to place Plaintiff in reasonable fear for his physical safety or purpose of imminently causing unwanted physical contact, injury, or harassment by a third party.

As for dissemination to the student body, Defendant argues the allegation is fatally uncertain, that Plaintiff's name and university affiliation are not private information because he was wearing a Chapman sweatshirt, that there is no allegation that Defendant forwarded the video to unknown students with intent to place Plaintiff in fear for his safety, that there is no allegation that Plaintiff was actually harassed by others, and that the EthicsPoint complaints filed by unknown students do not constitute unlawful action.

Unlike disclosure to university administrators, distribution of a video depicting Plaintiff using a racial slur to fellow students raises a reasonable inference that the disclosure was made for the purpose of causing Plaintiff unwanted harassment by a third party. Whether that distribution was likely to incite unlawful action is a factual question that cannot be resolved on demurrer.

The allegations supporting the seventh cause of action are minimally sufficient to state a cause of action arising under the anti-doxing statute. The demurrer to this cause of action is therefore **overruled**.

2. 9:00 AM CASE NUMBER: C23-01442

CASE NAME: SIOBHAN DUFALL VS. ROLANDO GUTIERREZ

***FURTHER CASE MANAGEMENT CONFERENCE CONT'D FROM 2/24 TO TRAIL MOTION RE:
RECONSIDERATION OF AN ORDER ADOPTING THE 11/19/25 TENTATIVE RULING GRANTING ARCH
INSURANCE COMPANY'S MOTION FOR LEAVE TO FILE A COMPLAINT IN INTERVENTION
FILED BY:**

TENTATIVE RULING:

This Case Management Conference (CMC) trails the hearing on Line 11. This CMC is continued to May 6, 2026 at 9:00 a.m. No appearance is required on March 25, 2026.

3. 9:00 AM CASE NUMBER: C24-03465

CASE NAME: LOURDES DE LA MORA VS. JUAN GALLEGOS

***FURTHER CASE MANAGEMENT CONFERENCE
FILED BY:**

TENTATIVE RULING:

This Case Management Conference (CMC) trails the hearing for Line 17, below. If Line 17 is unopposed, then this CMC will be continued to September 22, 2026 at 8:30 a.m.